

HOUSE BILL 1772

By Raper

AN ACT to amend Tennessee Code Annotated, Title 9;
Title 28; Title 29; Title 40 and Title 49, relative to
offender reentry.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 29, Part 1, is amended by adding the following as a new section:

(a) In any proceeding on a claim against a higher education institution for negligence in admitting, enrolling, extending housing opportunities to, or otherwise facilitating the educational attainment of a person who has been previously convicted of a criminal offense, a higher education institution is not liable based solely upon the fact that the person has been previously convicted of a criminal offense.

(b) In a cause of action against a higher education institution for negligence in admitting, enrolling, extending housing opportunities to, or otherwise facilitating the educational attainment of a person who has been previously convicted of a criminal offense, evidence that the person has been previously convicted of a criminal offense is not admissible.

(c) Subsections (a) and (b) do not apply when:

(1) The higher education institution had actual knowledge of the person's prior conviction for a violent offense, as defined in § 40-35-120(b), or a violent sexual offense, as defined in § 40-39-202; or

(2) The higher education institution, having actual knowledge of the person's commission of a violent offense, as defined in § 40-35-120(b), or a violent sexual offense, as defined in § 40-39-202, after admittance, was willful in

allowing the person to continue enrolling in, residing at, or otherwise utilizing the higher education institution.

(d) This section does not create a cause of action or expand an existing cause of action.

(e) Section 1-3-119 relative to implied rights of action applies to this section.

(f) As used in this section, "higher education institution" includes, but is not limited to, a school, college, university, or other type of entity offering educational credentials, instruction, or educational services primarily to persons who have completed or terminated the person's secondary education or who are beyond the age of compulsory high school attendance for the attainment of educational, professional, or vocational objectives.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to claims arising on or after that date.